

C.C.R.B CASE CLOSING FORM

Investigator assigned: Petrino		Team: 1	CCRB#: 9700964	☒ Force ☐ Discourtesy ☒ Abuse ☐ O.L. ☐ Injury
Date of incident: 3/17/97	Time of incident: 9:00 AM	Location of incident: 23rd and Claredon Rd.	Pct. of occurrence: 070	Date S.O.L. Expires: 9/17/98
Date reported: 3/18/97	Time reported: 11:43 AM	To whom/where/how reported: Complainant called the message center.		
Complainant: § 87(2)(b)		Home address: § 87(2)(b)		
Victim(s): Same as above		Home address:		
Witness(es): § 87(2)(b)		Home address: § 87(2)(b)		
Subject officer(s) (include rank): PO John Chell MOS unidentified MOS unidentified		Shield: 22294	Tax: 905942	Command: 067
Witness officer(s) (include rank): PO Kevin Kenny		Shield: 04113	Tax: 901770	Command: 067
Allegation(s) by letter: A- PO Chell was discourteous when he told the complainant to "shut up", in violation of Patrol Guide 104-01. B- PO Chell abused his authority when threatened to punch the complainant in the face, in violation of Patrol Guide 104-01 C- PO Chell used excessive force when he slammed the complainant's face onto the hood of the car, in violation of Patrol Guide 104-01 D- PO Chell used excessive force when he pushed the complainant's body against a car, in violation of Patrol Guide 104-01. E- An unidentified white female officer used excessive force when she slammed the complainant's face against the car, in violation of Patrol Guide 104-01. F- An unidentified black female officer used excessive force when she slammed the complainant's face against the car, in violation of Patrol Guide 104-01.				Recommendation(s): A- § 87(2)(g) B- § 87(2)(g) C- § 87(2)(g) D- § 87(2)(g) E- § 87(2)(g) F- § 87(2)(g)

Summary

The location of occurrence borders on the 67th and the 70th precinct. The call originally went out to the 70th precinct. But, due to the nature of the call, PO Frisone of the 70th called for back-up. However, the day of occurrence was St. Patrick's Day, so the 70th was operating with a skeleton crew. Therefore, PO Frisone switched over to the 67th precinct and officers from this command responded to the scene.

The 911 call that brought the officers to 23rd and Claredon was a burglary in progress. When PO Frisone and Sullivan arrived they were told that there were three Black teen-agers who had taken off on foot. PO Sullivan and Frisone chased two of the teen-agers down to 25th and Claredon. Officers from the 67th remained on 23rd Street. According to PO Chell, the man who was being burglarized indicated that § 87(2)(b) was the third perpetrator. PO Chell and Kenny chased the complainant who was running home, for her keys. PO Chell had to grab the complainant's arm to catch up to her. When he caught up to her, the complainant resisted. Eventually, she was handcuffed and brought in front the man who pointed her out. The victim said she was the wrong person. She asked PO Chell for his shield number and he provided it.

§ 87(2)(b) provided the name of a witness, but he refused to come forward. PO Chell filled out a 250 in relation to this incident, but refused is written in the spot allocated for the victim's name. PO Chell's memobook has the following entry:

at 8:40 hours arrived (10-84) at East 23 and Claredon--
At T/P/O observed female Black running north on East 23rd toward Curteyou Rd. Compliant, § 87(2)(b) stated that female was one of the perpetrators that burglarized his house. Cased female ½ block, stopped female and physically cuffed her. Further investigation revealed that she was not involved with the burglary, but did know one of the perpetrators. While, removing handcuffs female swung at PO and stated, "You think you're a tough guy." UF 250 prepared – female refused to give ID and took PO's shield number to make a complaint for "roughing her up."

§ 87(2)(b) provided pictures of her injuries sustained by being pushed against the car and her medical documents do not identify any ailments.

Analysis

The radio run printout indicates that the police were looking for three male black teen-agers. PO Sullivan and Frisone were on 25th Road chasing two of the perpetrators. The victim told PO Chell and Sullivan that § 87(2)(b) was the third. The officers gave chase after her. § 87(2)(b) was running home as the officers were chasing her. She did not think she was the subject of their chase. There were several other officers on the radio run, but they state that they were conducting other activities at the location.

Both PO Chell and § 87(2)(b) agree that § 87(2)(b) was running. § 87(2)(b) stated that she was running home because she forgot something. PO Chell said she was running because they were chasing her. § 87(2)(b) home is in the same direction in which the officers were running.. PO Chell admitted that he had to grab hold of § 87(2)(b) to make her stop running. PO Chell does not deny that he and his partner had to restrain § 87(2)(b). According to the officers, § 87(2)(b) was moving her arms and trying to get away from them. PO Chell said that they had to fight with § 87(2)(b) to get both of her hands handcuffed. Prior to being handcuffed she tried to hit him, but she missed. After the officers struggled with her for several minutes, they got the handcuffs on her and the victim told them that they had the wrong person.

§ 87(2)(b) does not deny that she was upset when she was stopped. PO Kenny said that for a reason, which he could not recall, § 87(2)(b) seemed confused. § 87(2)(g)

PO Chell and Kenny admit to having to restrain § 87(2)(b) but both cannot recall how this was done. § 87(2)(b) witness is the only person who is admitting to seeing the incident, but he failed to appear for arranged interviews.

§ 87(2)(b) alleged in allegations A and B, that PO Chell (identified by shield number) was discourteous when he told her to shut up and abused his authority when he threatened to punch her in the face. Both officers denied this allegation. § 87(2)(g)

§ 87(2)(g) Whenever a question was raised about his partner's behavior, he could not recall. § 87(2)(g)

However, § 87(2)(b) § 87(2)(g) failed to say that she was hostile with the officers, made remarks to them and the manner in which she resisted. § 87(2)(g)

Allegation C, D and E and F deal with how PO Chell and other officers dealt with § 87(2)(b) once she was stopped. § 87(2)(b) alleges in allegation C that PO Chell slammed her face onto the hood of the car. Again, both PO Chell and Kenny could not recall how PO Chell held the complainant down. They both recall that PO Chell had to hold her down, but they could not recall how. PO Kenny said that he never saw § 87(2)(b) head off the hood of the car. PO Chell does not deny that he held § 87(2)(b) against the car, but he cannot indicate how. He denied that he ever took her face and slammed it down. Whether his hands were not on her head he could not recall. § 87(2)(g)

§ 87(2)(b) In allegation D, PO Chell admitted to placing § 87(2)(b) against a car, so he could handcuff her. PO Chell explained that he and his partner had to restrain the complainant because she would not cooperate, and in order to do this he

placed her against a car. § 87(2)(g)

In allegations E and F, § 87(2)(b) said that there were two female officers at the location; however the radio run failed to indicate them and all the officers with the exceptions of PO Hinds, said that there were not any female officers at the location.

Attempts to identify the female officers were not successful. § 87(2)(b) said that the officers were both females and one was white and the other was black. After combing through both roll (70th and 67th) and running the histories of the officers, it was revealed that the (70th) precinct had two female officers on patrol that day and one was white, the other black. These officers were brought into CCRB and interviewed, but said they momentarily stopped at the incident, never got out of their car, and never saw any officers dealing with a female black. § 87(2)(b) was shown an array of the two female officers, but could not identify them. § 87(2)(g)

§ 87(2)(g)

Although there are medical records and pictures that indicate superficial injuries to the complainant, § 87(2)(g) did not go immediately to the hospital. § 87(2)(g)

§ 87(2)(g)

Investigator:	<u><i>Peter</i></u>	Date:	<u><i>3/4/98</i></u>
Supervisor:	<u><i>N. Meaders</i></u>	Date:	<u><i>3/6/98</i></u>
Reviewed by:	<u><i>James T. Dink</i></u>	Date:	<u><i>3/6/98</i></u>
Reviewed by:	<u><i>[Signature]</i></u>	Date:	<u> </u>